

no evidence suggesting an agreement to the property's value nor that appraisal is overly costly. As such, the Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316.

Disposition

The Court hereby finds and orders as follows:

1. The motion re Appraiser is GRANTED.
2. The Court appoints Eric Riseberg to appraise the subject property pursuant to Code of Civil Procedure section 874.316(d).
3. A sworn or verified appraisal is to be filed with the Court upon completion of the appraisal pursuant to Code of Civil Procedure section 874.316(d).
4. Moving party to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: C25-01650  
CASE NAME: SANDY PARK VS. RENE GAMBOA  
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT  
FILED BY: GAMBOA, RENE  
**\*TENTATIVE RULING:\***

Before the Court is a demurrer to the first amended complaint. For the reasons set forth, the demurrer is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

**Background**

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. After the Court sustained a demurrer by defendants, Plaintiff filed her operative first amended complaint ("FAC") to which defendants again demur.

Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with a defendant Kim. (FAC ¶¶ 1, 2.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (FAC ¶ 1.)

Park alleges she retained defendants to represent her in the Kim Action in March 2021. (FAC ¶ 16.) She alleges defendants withdrew from her representation on an ex parte basis "shortly before trial." (FAC ¶¶ 2, 19 [in July 2023 approximately six weeks before trial].) Defendants "formally terminated" their attorney-client relationship with Plaintiff on or about July 25, 2023. (FAC ¶ 22.)

Plaintiff alleges on or about July 18, 2023, defendants contacted Plaintiff's handwriting expert and "discussed evidentiary issues central to the Kim action" without Plaintiff's knowledge or consent. (FAC ¶ 23.) The "contact compromised Plaintiff's litigation position" and required her to retain a new expert. (FAC ¶ 24.)

Trial was held in the Kim Action in December 2023. (FAC ¶ 25.) Plaintiff acknowledges the court in the Kim Action issued a Statement of Decision on February 20, 2024. (FAC ¶ 26.) She alleges that the Statement of Decision "was not the final judgment," that she filed a motion for new trial which was

heard on May 10, 2024, that the court retained the authority to reconsider or modify its ruling based on the new trial motion, and that the court "conclusively" determined Plaintiff's rights when the court issued its June 14, 2024 "final decision." (FAC ¶¶ 26-29.) She alleges the June 14, 2024 ruling denying relief on her new trial motion was when she "first sustained actual, non-speculative, and irreversible injury" and that until the June 14, 2024 ruling, her damages were "contingent" and "uncertain." (FAC ¶¶ 30, 31, 51.) She alleges this lawsuit was timely filed on June 12, 2025, within one year of the June 14, 2024 ruling. (FAC ¶¶ 38, 52.)

Plaintiff also alleges defendants failed to return her retainer balance and all unearned fees upon defendants' withdrawal in July 2023 contrary to the Rules of Professional Conduct. (FAC ¶¶ 32-34.) She alleges defendants were obligated to return all unearned fees and failed to return a \$5,000 retainer in July 2023, and after trial concluded in December 2023 only issued a partial refund. (FAC ¶¶ 32-34.)

Plaintiff alleges three causes of action for breach of defendants' contract to render professional services and professional negligence (1st C/A, *see in particular* FAC ¶¶ 42, 43, 45, 46), breach of fiduciary duty (2nd C/A, *see in particular* FAC ¶¶ 57, 59-61), and failure to return unearned fees (3rd C/A, *see in particular* FAC 71-79). Defendants have filed a general demurrer to the FAC in its entirety on the ground the claims are barred by the one-year statute of limitations of Code of Civil Procedure section 340.6 and therefore fails to state a cause of action against them.

#### **Legal Standards Governing Demurrer**

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A general demurrer on statute of limitations grounds may be sustained if it "clearly and affirmatively" appears on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) If the demurrer is sustained, plaintiff "has the burden of proving the possibility of cure by amendment." (*Czajkowski v. Haskell & White, LLP, supra*, 208 Cal.App.4th 166, 173 [quoting *Grinzi v. San Diego Hospice Corp.* (2004) 120 Cal.App.4th 72, 78-79 (internal quotations omitted)].)

#### **Defendants' Request for Judicial Notice**

In support of their demurrer, Defendants request the Court take judicial notice of the Statement of Decision and Judgment filed February 20, 2024 in the Kim Action (RJN Exh. A). The Court **grants** the unopposed request.

Judicial notice of a prior order or judgment may be taken in ruling on a demurrer. (Evid. Code § 452(d); *Shine v. Williams Sonoma, Inc.* (2018) 23 Cal.App.5th 1070 [affirming judgment dismissing

complaint on the grounds of res judicata based on prior litigation and a settlement in the prior litigation].) (See also *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans v. City of Berkeley, supra*, 38 Cal.4th at 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, alleged in the original complaint but not the operative complaint, from which both sides quoted and the Court found "no potential dispute exists as to the letter's language, allowing its consideration on demurrer"].) The Court does not take judicial notice of the truth of the findings or conclusions in the Statement of Decision and Judgment (RJN Exh. A) to the extent reasonably disputable, but the Court takes judicial notice that the findings and conclusions were made, and the Statement of Decision and Judgment issued and filed with the court in the Kim Action on the date stated on the face of the document, and their legal effect. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1570.)

#### **Plaintiff's Exhibits to Her Opposition**

Plaintiff has attached two exhibits to her opposition to the demurrer: (1) a copy of the June 14, 2024 Order After Hearing and Judgment in the Kim Action (Opp. Exh. A), a copy of which is also attached as Exhibit A to Plaintiff's FA; and (2) an unauthenticated copy of an email chain between Plaintiff and defendants' counsel (Opp. Exh. B). The Court will not consider Exhibit B in ruling on the motion as evidence outside the scope of judicial notice and not properly considered on a demurrer. (*Donabedian, supra*, 116 Cal.App.4th at 994.) The Court interprets Plaintiff's opposition as requesting judicial notice of the June 14, 2024 Order After Hearing and Judgment in the Kim Action, which the Court will consider for the same reasons and under the same authority cited above in reference to the February 20, 2024 Statement of Decision and Judgment.

#### **Analysis**

Code of Civil Procedure section 340.6(a) governs the statute of limitations on claims for attorney malpractice. The statute provides, "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first." (Code Civ. Proc. § 340.6(a).) The statute also provides that the period for filing an action is tolled "during the time that any of the following exist: [¶] (1) The plaintiff has not sustained actual injury; [¶] (2) the attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred; . . . [¶] the plaintiff is under a legal or physical disability that restricts plaintiff's ability to commence legal action. . . ." (*Id.*)

The one-year statute of limitations of section 340.6 applies not only to a cause of action for attorney malpractice but also to causes of action stemming from non-legal services incidental to the legal relationship "when the merits of the claim will necessarily depend on proof that an attorney violated a professional obligation—that is, an obligation the attorney has by virtue of being an attorney—in the course of providing professional services." (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1229, 1236-1237 [emphasis added; one-year bar "applies to claims whose merits necessarily depend on proof that an

attorney violated a professional obligation in the course of providing professional services. In this context, a 'professional obligation' is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct."].) (*See also Quintilliani v. Mannerino* (1998) 62 Cal.App.4th 54, 68 [one-year statute of limitations applied to breach of contract and breach of fiduciary duty causes of action arising out of attorney-client relationship and legal services even though intertwined with non-legal services].)

**A. Statute of Limitations Applicable to Plaintiff's Causes of Action**

Plaintiff generally concedes that the one-year statute of limitations under Code of Civil Procedure section 340.6 applies to her first and second causes of action. The allegations of the first cause of action show that the factual basis of the claim is directly tied to and based on defendants' alleged professional misconduct in rendering services to her under their engagement agreement. (FAC ¶¶ 1-54.) The breach of fiduciary duty claim alleged in the second cause of action is similarly directly based on allegations of professional misconduct in defendants' rendering of legal services to Plaintiff as part of their engagement in the Kim Action. (FAC ¶¶ 3, 55-69.) In the third cause of action, Plaintiff explicitly alleges that "Plaintiff's claim for failure to return unearned fees arises from Defendants' violation of professional obligations owed by virtue of the attorney-client relationship and is governed by Code of Civil Procedure section 340.6(a)." (FAC ¶ 83.) (*See also* FAC ¶ 36 ["This Action is governed by Code of Civil Procedure section 340.6(a)], incorporated by reference into all three causes of action in FAC ¶¶ 41, 55, 70.) All of these causes of action as alleged by Plaintiff therefore are based on claims that defendants violated professional obligations they have by virtue of being attorneys in the course of rendering professional services to Plaintiff in the Kim Action. (*Lee v. Hanley, supra*, 61 Cal.4th at 1129.) The one-year statute of limitations of Code of Civil Procedure section 340.6(a) applies to those causes of action.

**B. Commencement of Statute of Limitations Based on Actual Injury**

"Actual injury occurs when the client suffers any loss or injury legally cognizable as damages in a legal malpractice action based on the asserted errors or omissions. [Citations omitted.] Under the Legislature's codification of *Budd*, section 340.6, subdivision (a)(1), will not toll the limitations period once the client can plead damages that could establish a cause of action for legal malpractice." (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 743.)

*Laird v. Blacker* (1992) 2 Cal.4th 606 cited by Plaintiff, decided before the California Supreme Court's decision in *Jordache*, addressed when a client sustains "actual injury" for the statute of limitations to begin to run under Code of Civil Procedure section 340.6. Based on the facts and issues presented in that case, the Court held that the one-year time period to file a malpractice action "commences when a client suffers an adverse judgment or order of dismissal in the underlying action on which the malpractice action is based." (*Id.* at 609, 615.) The Court rejected the plaintiff's contention that the statute of limitations is tolled while an appeal of the judgment or dismissal of the underlying action is pending. (*Id.* at 615.) "Section 340.6 and its legislative history make clear that once a client has been injured by an adverse judgment, the limitations period commences and is not tolled by filing an appeal absent continuous representation by the trial attorney. [Citation omitted.]" (*Id.* at 618.)

Courts distinguish between the fact of damage and the amount of damage in analyzing whether actual injury has occurred and the statute of limitations accrues. (*Id.* at 612.) Discovery of the fact of damage is enough to start the statute of limitations, even if the amount damages the plaintiff may ultimately sustain is uncertain. (*Id.* at 612, 613; *Jordache, supra*, 18 Cal.4th at 751, 752.) "A plaintiff need not suffer a *complete* loss of a right or reach final adjudication of an issue to sustain actual injury." (*Village Nurseries v. Greenbaum* (2002) 101 Cal.App.4th 26, 42 [italics in original].) (*See also Sharon v. Porter* (2019) 41 Cal. App. 5th 1, 8 ["'An existing injury is not contingent or speculative simply because future events may affect its permanency or the amount of monetary damages eventually incurred.' [Citation omitted.] In other words, 'we must distinguish between an actual, existing injury that might be remedied or reduced in the future, and a speculative or contingent injury that might or might not arise in the future.' [Citation omitted.]" (Emphasis added.).)]

The cases are clear that actual injury occurs when an adverse judgment or case ending determination is made, even if there may be remedies available to the party to try to modify or reverse the adverse outcome through an appeal or a motion for relief under Code of Civil Procedure section 473. (*Laird, supra*, 2 Cal.4th at 609, 615, 618; *Turley v. Wooldridge* (1991) 230 Cal.App.3d 586, 591-593 [potential for 473 relief from allegedly unfair marital termination agreement did not delay "accrual of actual injury," citing as an example *Goebel v. Lauderdale* (1989) 214 Cal.App.3d 1502, 1507 in which Court concluded actual harm from attorney malpractice occurred when plaintiff was convicted of a crime, "**not** when that decision was immune from challenge by way of motion for reconsideration or appeal." (Emphasis in original.).)]

Plaintiff seems to suggest in her opposition that her motion for new trial was granted because a hearing was set on the motion and the court entered a ruling on that motion on June 14, 2024, such that accrual of the statute of limitations was delayed until that "final" ruling. To the extent Plaintiff characterizes the events as the court granting the new trial motion, that characterization is inaccurate. The June 14, 2024 ruling unequivocally denied Plaintiff's motion for new trial. (FAC Exh. A, pp. 2-4, and p. 7, ¶ 1 ["The Court finds that the motion for new trial lacks merit. Therefore the Court denies the motion for new trial."].) The "judgment" entered in the June 14, 2024 ruling referenced in the title of the order reflects an award of attorneys' fees and costs against Park and in favor of Kim. (FAC Exh. A, p. 6, p. 7 ¶ 2.)

Plaintiff argues these cases are distinguishable because she had the possibility of making a motion for new trial, which she did, and that while the opportunity to change the outcome of the Statement of Decision and Judgment entered February 20, 2024 existed through her new trial motion, she had not suffered actual harm, and the statute of limitations was tolled. Plaintiff, however, does not explain why the filing of a motion for new trial should be treated differently for purposes of the accrual of actual injury than the opportunity to modify or reverse an adverse judgment through an appeal, or to vacate an adverse determination through a motion for relief under Code of Civil Procedure section 473, or to vacate or modify a conviction by a motion for reconsideration or appeal in the decisions cited above. In those cases, the courts have held the statute of limitations accrued on entry of the adverse judgment, even if remedies were available to the injured party to seek relief.

Plaintiff repeatedly refers to the "Statement of Decision" filed February 20, 2024, but the document reflects it is a "Statement of Decision and Judgment." (Def. RJN Exh. 1.) That judgment was entered against her in the Kim Action upon the court's filing of the Statement of Decision and Judgment on

February 24, 2024 is consistent with Code of Civil Procedure section 664 which requires the clerk of the court to enter judgment "in conformity to the decision of the court, immediately upon the filing of such decision." (Code Civ. Proc. § 664(a).) Plaintiff's malpractice-based claims accrued, and she suffered actual injury, when judgment was entered against her on February 20, 2024 under the foregoing case authority. Plaintiff alleges other facts that support that Plaintiff suffered actual and appreciate harm and damages before February 20, 2024. (FAC ¶¶ 3, 23-25 [defendants allegedly contacted Plaintiff's expert witness on July 18, 2023, they withdrew on July 25, 2023, and Plaintiff was forced to hire a new expert witness with trial held in December 2023, suggesting she suffered damages for the cost of the new expert by December 2023] and FAC ¶¶ 32-34 [defendants' attorney-client relationship terminated in July 2025, and they failed to timely return the retainer and unearned fees when the relationship terminated, suggesting she suffered actual harm and damages at that time].)

Nevertheless, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

#### **Conclusion and Denial of Leave to Amend**

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations which accrued no later than February 20, 2024. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired. Plaintiff was given an opportunity to try to amend her original complaint to state claims not barred by the statute of limitations. Plaintiff failed to do so. While she asks for leave to amend if the demurrer is sustained, she assert only that she can "provide additional specificity without altering the underlying claims." (Opp. p. 10, ll. 16-17.) The flaw in the FAC is not the lack of specific allegations; the specific allegations in the FAC show her claims are barred by the statute of limitations. The demurrer to the FAC is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

6. 9:00 AM CASE NUMBER: C25-02761  
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,  
\*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO TARA KUMAR PURSUANT TO CCP 473  
FILED BY: KUMAR, TARA  
**\*TENTATIVE RULING:\***

Defendant Tara Kumar ("Defendant") filed a motion to set aside default on March 6, 2026 (the "Motion re Default"). The Motion re Default was set for hearing on July 6, 2026.

#### **Background**